

In their Opposition, Cross-Complainants argue that they may seek fees under the “tort of another” theory. The tort of another doctrine is an “exception” to the American Rule whereby “[a] person who, through the tort of another, has been required to act in the protection of his interests by bringing or defending an action against a third person is entitled to recover compensation for the reasonably necessary loss of time, attorney’s fees, and other expenditures thereby suffered or incurred.” (*Prentice v. North Amer. Title Guar. Corp.* (1963) 59 Cal.2d 618, 620.) In such cases, the attorneys’ fees are recoverable as damages resulting from the tort in the same way that medical fees would be part of the damages in a personal injury action. (*Sooy v. Peter* (1990) 220 Cal. App. 3d 1305, 1310.) Here, Cross-Complainants alleged that they were required to prosecute or defend a third-party lawsuit. It is clear from the allegations that Cross-Complainants seek the legal fees associated with the present lawsuit. As such, the tort of another doctrine does not apply.

Cross-Complainants also argue that they may seek punitive damages pursuant to CCP §1021.5, which provides that a court may award attorneys’ fees to a successful party in any action which has resulted in the enforcement of an important right affecting the public interest if: (a) a significant benefit has been conferred on the general public or a large class of persons, (b) the necessity and financial burden of private enforcement are such as to make the award appropriate, and (c) such fees should not in the interest of justice be paid out of the recovery, if any. Recovery is available only if the proceeding: (1) served to vindicate an important public right; (2) conferred a significant benefit on the public or a large class of persons; and (3) imposed a financial hardship on the plaintiff which was out of proportion to his or her individual stake in the matter. (*Baggett v. Gates* (1982) 32 Cal. 3d 128, 142.) The benefit must be more than a cautionary message to the defendant that its conduct is wrongful. (*Flannery v. California Highway Patrol* (1998) 61 Cal. App. 4th 629, 635.) “Section 1021.5 was not designed as a method for rewarding litigants motivated by their own pecuniary interests who only coincidentally protect the public interest.” (*Angelheart v. City of Burbank* (1991) 232 Cal. App. 3d 460, 470.) The Cross-Complainant contains no claims that would confer a substantial benefit on the general public. This case involves a private dispute and is motivated entirely by Cross-Complainants pecuniary interests.

Because Cross-Complainants have pled no exception to the American Rule, the Prayer for attorney’s fees is stricken.

3.

CASE #	CASE NAME	HEARING NAME
CVME2608137	COUNTY OF RIVERSIDE VS RAHMAN	HEARING ON PRELIMINARY INJUNCTION

Tentative Ruling: Preliminary Injunction is Granted.